

Experiment: 1.4

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Aim: Write an article and case study on the topics given below — what a copyright is and the rights related to it; the types of work protected by copyright; the authorship and ownership of copyright; and the duration of copyright protection.

1. Introduction: What a Copyright Actually Is

Copyright is the right that the law gives an author over the particular form in which an idea has been expressed. It is not a right over the idea, the information, the technique or the subject matter; it is a right over the arrangement of words, notes, lines, shapes, frames or instructions through which that subject matter has been made perceptible to someone else. The Copyright Act, 1957 therefore does not ask whether a work is good, useful, novel or commercially valuable. It asks only two questions: is the expression original to this author, and has it been fixed in a form from which it can be reproduced?

This makes copyright behave very differently from a patent. A patent must be applied for, examined for novelty and inventive step, and granted before it exists. Copyright exists from the instant of creation. No application, examination, deposit, fee or notice is required, and registration under Section 45 is purely voluntary — the entry in the Register of Copyrights is evidence of ownership under Section 48, not the source of it. India inherited this position from Article 5(2) of the Berne Convention, which forbids member states from making protection conditional on any formality.

What the author receives is not a single right but a bundle of negative rights: the ability to stop other people from reproducing, performing, communicating, adapting or translating the work, and to license or assign each of those abilities separately. Around that core the law has built two further layers. Moral rights protect the author's personal connection with the work even after the commercial rights have been sold. Related rights — called neighbouring rights in Germany and France, and simply absorbed into copyright in the United States and the United Kingdom — protect those who perform, record and broadcast works rather than those who author them.

Like every intellectual property right, copyright is a bargain and not a gift. In return for exclusivity the author accepts a finite term after which the work falls irreversibly into the public domain, and accepts a substantial list of permitted uses under Section 52 — private study, research, criticism, review, reporting, judicial proceedings, classroom teaching and conversion into accessible formats for persons with disabilities — which the owner cannot prevent.

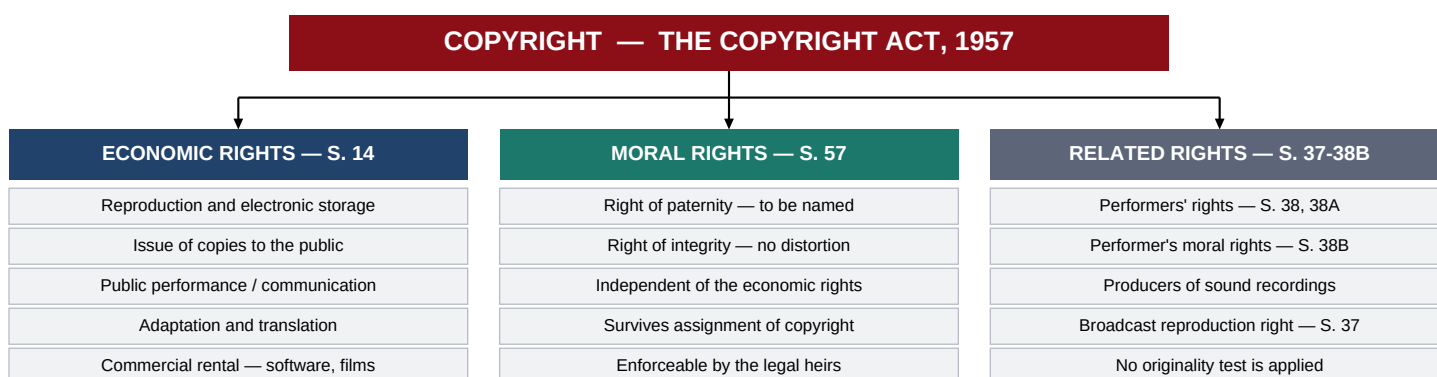
Table 1 — The Legal Framework Governing Copyright in India

Instrument	Year	What It Governs	Position in India
The Copyright Act	1957	Subject matter (S. 13), rights (S. 14), ownership (S. 17), term (S. 22-29), infringement and remedies	The principal statute; amended six times
The Copyright (Amendment) Act	2012	Performers' rights, authors' non-assignable royalty share, statutory licences, DRM offences, disability access	The most far-reaching revision to date
The Copyright Rules	2013	Registration procedure, copyright societies, statutory and compulsory licensing machinery	Replaced the Rules of 1958

Instrument	Year	What It Governs	Position in India
Berne Convention	1886	Automatic protection without formality; minimum term of life plus 50 years; national treatment	India a member since 1928
Universal Copyright Convention	1952	Alternative multilateral regime built around the © notice	India a member since 1957
Rome Convention	1961	Rights of performers, producers of phonograms and broadcasting organisations	The origin of related rights
TRIPS Agreement	1995	Minimum standards and enforcement obligations for all WTO members	Binding on India since 1995
WCT and WPPT (WIPO Internet Treaties)	1996	Rights in the digital environment, technological protection measures, rights management information	India acceded in 2018
Marrakesh VIP Treaty	2013	Accessible format copies for persons with print disabilities	India was the first country to ratify

2. The Rights Conferred by Copyright and the Rights Related to It

The expression “copyright and related rights” covers two different populations of right holders. Copyright protects the people who author works — the novelist, the playwright, the composer, the painter, the photographer, the programmer. Related rights protect the people and businesses who do not author anything but who perform, fix, disseminate or communicate those works to the public, and who invest heavily in doing so. The performer of a folk song in the public domain authors nothing, yet the law protects the performance; the broadcaster of a live cricket match authors nothing, yet the law protects the signal.



Protection is automatic on creation · registration is optional and only evidentiary · every term is finite

Figure 1 — The three layers of protection built on a single work.

2.1 Economic Rights under Section 14

Section 14 defines copyright as the exclusive right to do, or authorise the doing of, certain acts — and it defines a different set of acts for each category of work. This is the single most commonly misread provision in the Act: there is no general, uniform “copyright” in India. A sound recording, for example, carries no adaptation or translation right, because the concept has no meaning for it, while a computer programme carries a commercial rental right that an ordinary book

does not.

Table 2 — Exclusive Rights Conferred by Section 14, Category by Category

Category of Work	Acts Reserved Exclusively to the Owner
Literary, dramatic or musical work (other than a computer programme)	Reproduce in any material form, including electronic storage; issue copies not already in circulation; perform or communicate to the public; make a cinematograph film or sound recording of it; make any translation; make any adaptation; and do any of these acts in relation to a translation or adaptation
Computer programme	All of the rights above, plus the right to sell, give on commercial rental or offer for sale or rental any copy of the programme, regardless of whether that copy has been sold before
Artistic work	Reproduce in any material form, including depiction in three dimensions of a two-dimensional work and vice versa; store electronically; communicate to the public; issue copies; include in a film; and make any adaptation
Cinematograph film	Make a copy of the film, including a photograph of any image forming part of it and electronic storage; sell or give on commercial rental any copy; and communicate the film to the public
Sound recording	Make any other sound recording embodying it, including electronic storage; sell or give on commercial rental any copy; and communicate the recording to the public

2.2 Moral Rights under Section 57

Section 57 gives the author two rights that exist independently of the economic rights and independently of who owns them. The right of paternity is the right to claim authorship of the work. The right of integrity is the right to restrain or claim damages for any distortion, mutilation, modification or other act in relation to the work that would be prejudicial to the author's honour or reputation. These rights remain with the author after the copyright has been assigned in full, they cannot be waived by an ordinary contract, and they are exercisable by the author's legal representatives after death.

Case Study — Amar Nath Sehgal v. Union of India, Delhi High Court (2005). The plaintiff was commissioned in the late 1950s to create a bronze mural for Vigyan Bhawan in New Delhi. The work, some forty feet long, was a celebrated example of modern Indian sculpture. During renovation in 1979 it was pulled down, dismembered and consigned to a government storeroom, where parts of it were damaged and lost. The Union of India argued that it owned the copyright outright, having commissioned and paid for the mural, and that an owner may deal with its own property as it pleases. The Court accepted that the economic copyright vested in the Government but held that this was beside the point. Section 57 protects the author's personality in the work, not the owner's investment in it, and destruction or neglect that reduces the volume of an artist's creative corpus is itself prejudicial to honour and reputation. The Government was directed to return the remnants of the mural to the sculptor, was divested of all rights in it, and was ordered to pay damages. The judgment is the leading Indian authority for three propositions: moral rights survive an unconditional assignment, they extend to acts of destruction and not merely to alteration, and they are enforceable against the State.

2.3 Related or Neighbouring Rights

Related rights were created because copyright, framed around authorship and originality, could not accommodate three classes of contributor whose economic importance is nevertheless obvious. India follows the Rome Convention model and recognises all three:

- **Rights of performers.** A performer includes an actor, singer, musician, dancer, acrobat, juggler, conjurer, snake charmer, lecturer or any other person who makes a performance. The right attaches to a live performance — a rendition of a pre-existing dramatic or musical work, a recitation or reading of a literary work, or a wholly improvised piece. The underlying work need not be original, need not be previously fixed in any medium, and may perfectly well be in the public domain. Section 38A confers exclusive rights over sound and visual recording, reproduction, issue of copies, communication to the public and commercial rental; Section 38B gives the performer moral rights of identification and integrity.
- **Rights of producers of sound recordings, or phonograms.** The producer who organises and finances the fixation of sounds — historically on a compact disc, today on a server — owns the recording as a distinct subject matter, separate from the song recorded in it.
- **Rights of broadcasting organisations.** Section 37 confers a broadcast reproduction right over radio and television programmes transmitted over the air, and, in India as in many countries, over transmissions carried by cable. It protects the signal itself, so a broadcaster can act against unauthorised re-broadcasting or recording even where it holds no copyright in the programme content.

Table 3 — Copyright Compared with Related (Neighbouring) Rights

Aspect	Copyright	Related / Neighbouring Rights
Who holds the right	The author — writer, composer, artist, photographer, programmer	Performers, producers of sound recordings, broadcasting organisations
What is protected	Original expression fixed in a material form	A performance, a fixation of sounds, or a broadcast signal
Originality required	Yes — the work must originate with the author and show skill and judgment	No — investment, skill and organisation are protected instead
Statutory basis in India	Sections 13, 14 and 57 of the Copyright Act, 1957	Sections 37, 38, 38A and 38B of the same Act
Term	Generally the author's lifetime plus 60 years	50 years for a performance; 25 years for a broadcast
Treatment in other systems	A unified copyright in the United States and the United Kingdom	A separate category of droits voisins in France and Germany
Governing treaty	Berne Convention, TRIPS, WIPO Copyright Treaty	Rome Convention, TRIPS, WIPO Performances and Phonograms Treaty

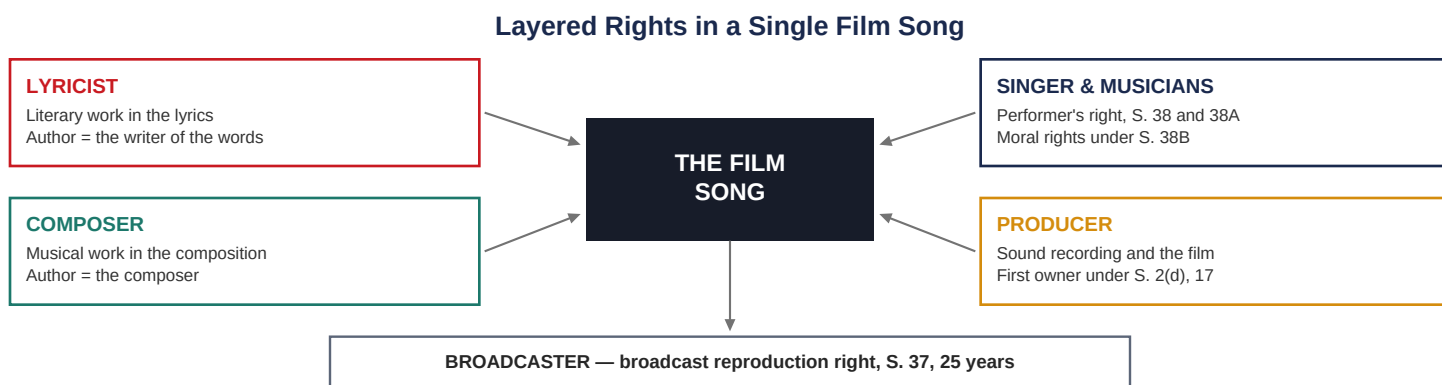


Figure 2 — Five different rights attaching simultaneously to one film song.

Case Study — Neha Bhasin v. Anand Raj Anand, Delhi High Court (2006). A playback singer recorded a song in a studio for a film. When the song was released she found that another singer's version had been used in some formats and that her own credit had been handled carelessly, and she asserted a performer's right. The defence was technical but serious: Section 2(q) protects a “live performance”, and a controlled studio recording, layered track by track with no audience present, is not live in any ordinary sense. The Court rejected the argument and gave the provision the reading it still carries — every performance is live in the first instance, whether it happens before an audience or before a microphone, because it is the act of performing rather than the presence of spectators that the statute protects. Once that first rendition is recorded, the performer's right attaches to the recording. The case matters because almost all commercially significant Indian performances are studio performances; had the defence succeeded, Section 38 would have protected almost nothing.

3. The Types of Work Protected by Copyright

Section 13(1) confines copyright to three classes: original literary, dramatic, musical and artistic works; cinematograph films; and sound recordings. Every example one can think of — a newspaper, a mobile application, a webcast, a product label, a training video, a database, a piece of architecture — is a species of one of these. The classification is not cosmetic. It decides which set of rights under Section 14 applies, who counts as the author under Section 2(d), who is the first owner under Section 17, and how long protection lasts under Sections 22 to 29.

Table 4 — The Statutory Categories and What Falls Within Them

Statutory Category	Scope of the Definition	Representative Examples
Literary work — S. 2(o)	Anything expressed in words, figures or symbols; expressly includes computer programmes, tables and compilations, including computer databases	Books, magazines, newspapers, technical papers, instruction manuals, catalogues, tables, compilations, source code and object code, some databases
Dramatic work — S. 2(h)	Any piece for recitation, choreographic work or entertainment in dumb show, the scenic arrangement or acting form of which is fixed in writing; excludes a cinematograph film	Stage plays, screenplays and scenarios, choreographic notation, and a sales training programme captured on videocassette
Musical work — S. 2(p)	A work consisting of music, together with any graphical notation of it, but excluding the words sung and the action performed with the music	Compositions and compilations of compositions; the melody and harmony as distinct from the lyrics and from the recording

Statutory Category	Scope of the Definition	Representative Examples
Artistic work — S. 2(c)	A painting, sculpture, drawing (including a diagram, map, chart or plan), engraving or photograph, whether or not it possesses artistic quality; a work of architecture; any other work of artistic craftsmanship	Cartoons, drawings, paintings, sculptures, computer artwork, photographs on paper and in digital form, maps, globes, charts, diagrams, plans and technical drawings, advertisements, commercial prints and labels, logos
Cinematograph film — S. 2(f)	Any work of visual recording, including a sound recording accompanying it, and any process analogous to cinematography including video	Motion pictures, television programmes, webcasts, animation, advertising films, multimedia products and the audiovisual layer of video games
Sound recording — S. 2(xx)	A recording of sounds from which the sounds may be produced, regardless of the medium or the method used	Compact discs, digital audio files, streaming masters, podcasts, phonograms
Government work — S. 2(k)	A work made or published by or under the direction or control of the Government, a legislature, or a court or tribunal in India	Official reports, gazette notifications, departmental manuals, syllabi and curricula issued by a public authority

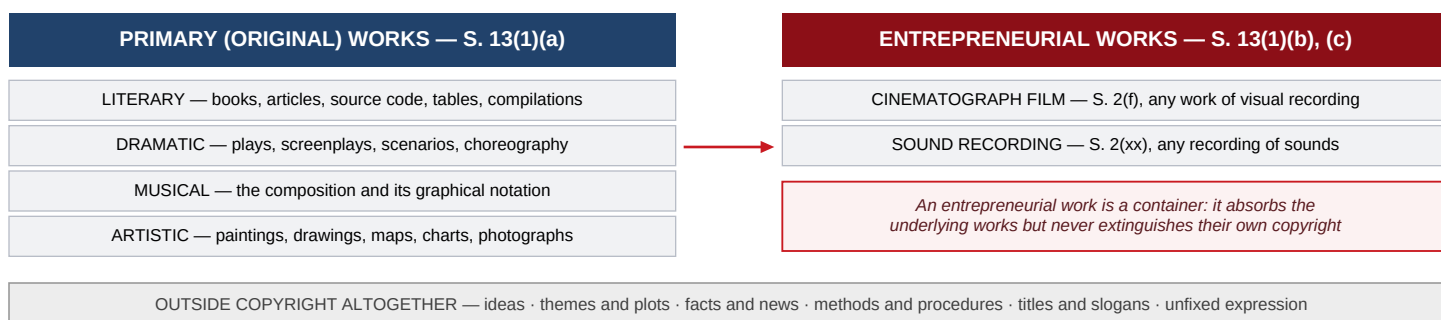


Figure 3 — Primary works, entrepreneurial works, and the matter that falls outside copyright altogether.

3.1 What Copyright Does Not Protect

The boundaries of the subject matter are as important as its contents, and almost all litigation is fought on them:

- **Ideas, themes, plots and concepts.** Two writers may lawfully treat the same social problem, and two programmers may lawfully solve the same problem, provided each writes their own expression of it.
- **Facts, news and data.** The event reported is free to all; only the reporter's particular account of it is protected.
- **Methods, systems and procedures.** A method of accounting, a rule of a game or a manufacturing process is outside copyright, although the manual describing it is inside.
- **Titles, names and short phrases.** These are the province of trade mark law; a film title as such carries no copyright.
- **Unoriginal compilations.** A directory assembled by pure labour, with no selection or arrangement calling for judgment, is not protected merely because it was expensive to compile.
- **Functional shape and purely mechanical form.** Where appearance is dictated entirely by function, design law or patent law applies instead.

Case Study — Eastern Book Company v. D. B. Modak, Supreme Court of India (2008). The appellants published Supreme Court Cases, in which raw judgments were copy-edited, paragraphed, cross-referenced and supplied with headnotes, editorial notes and indications of concurring and dissenting opinions. The respondents reproduced the text of the judgments from those volumes on CD-ROM. Section 52(1)(q) makes the reproduction of a judgment of a court non-infringing, so the whole case turned on whether the publisher's editorial layer was itself an original literary work. The Court used the occasion to settle the Indian test of originality. It rejected the English “sweat of the brow” approach, under which mere labour and expense suffices, and equally rejected any requirement of novelty or creative flair. What is required is a minimal degree of creativity — skill, judgment and some labour of a kind that is more than trivial and more than purely mechanical. Applying that standard, the headnotes, editorial notes and the identification of separate opinions were held to be original and protected, while the copy-edited text of the judgments, paragraph numbering and typographical corrections were not. Eastern Book Company is now the starting point for every Indian argument about compilations, databases and derivative works.

Case Study — R. G. Anand v. M/s Delux Films, Supreme Court of India (1978). The appellant wrote and staged the Hindi play Hum Hindustani, which dealt with provincialism and the strain it places on a marriage. He narrated the story to a producer, who later released the film New Delhi, built on the same theme. The Supreme Court held that there is no copyright in an idea, subject matter, theme, plot or historical fact, and that infringement arises only where the treatment is so close that a viewer of ordinary intelligence, seeing both works, would be left with the unmistakable impression that the later is a copy of the earlier. Because the film developed the shared theme through different incidents, characters and dialogue, the suit failed. The decision explains both why two works on the same subject may coexist and why lifting a distinctive sequence of scenes, or a distinctive structure of program modules, will not be excused.

The same reasoning governs software. A computer programme is protected as a literary work, so its source and object code, its structure, its sequence of modules and its screen displays are within copyright, while the algorithm, the functional specification and the ideas it implements are not. In Microsoft Corporation v. Yogesh Papat (2005) the Delhi High Court applied this framework to an assembler who loaded unlicensed copies of the plaintiff's software onto machines he sold, and awarded substantial damages calculated on estimated lost licence revenue — the first Indian judgment to treat software piracy as a quantifiable commercial loss rather than a purely technical breach.

4. Authorship and Ownership of Copyright

Authorship and ownership are two different questions and the Act answers them in two different places. Authorship is a question of fact: who actually created this expression? Section 2(d) supplies the answer for each category of work. Ownership is a question of law: in whom do the economic rights first vest? Section 17 supplies that answer, and it does not always name the author. In the ordinary case the two coincide, and the author is the first owner. They come apart in a defined set of situations, every one of which operates only “in the absence of any agreement to the contrary” — which is to say that all of them can be reversed by a properly drafted contract.

Table 5 — Who Is the “Author” under Section 2(d)

Category of Work	The Author Is
Literary or dramatic work	The author of the work — the person who wrote it
Musical work	The composer, that is the person who composed the music, whether or not it is recorded in notation
Artistic work other than a photograph	The artist

Category of Work	The Author Is
Photograph	The person taking the photograph
Cinematograph film	The producer, being the person who takes the initiative and responsibility for making the work
Sound recording	The producer of the recording
Computer-generated literary, dramatic, musical or artistic work	The person who causes the work to be created

Table 6 — First Ownership of Copyright under Section 17

Situation	First Owner	Provision
A literary, dramatic or artistic work made by the author in the course of employment by the proprietor of a newspaper, magazine or similar periodical, under a contract of service or apprenticeship, for the purpose of publication in it	The proprietor of the newspaper, magazine or periodical — but only so far as publication in that periodical is concerned; the author retains the rest	S. 17(a)
A photograph taken, or a painting or portrait drawn, or an engraving or a cinematograph film made, for valuable consideration at the instance of any person	The person who commissioned the work and paid for it	S. 17(b)
Any other work made in the course of the author's employment under a contract of service or apprenticeship	The employer	S. 17(c)
An address or speech delivered in public	The person who delivered it; where it is delivered on behalf of another person, that other person	S. 17(cc)
A Government work	The Government	S. 17(d)
A work made or first published by or under the direction or control of a public undertaking	The public undertaking	S. 17(dd)
A work made or first published by or under the direction of an international organisation to which Section 41 applies	That international organisation	S. 17(e)
A literary, dramatic, musical or artistic work incorporated in a cinematograph film (after the 2012 amendment)	The author retains copyright in the underlying work; the producer owns the film, and cannot take the author's royalty share for uses outside the cinema hall	Proviso to S. 17

Two consequences of this scheme are worth stating expressly. First, a contract of service transfers ownership but a contract for service does not: an employee's work vests in the employer, whereas an independent consultant, freelancer or vendor keeps the copyright unless a written assignment says otherwise. This is the single most frequent source of ownership disputes in the software and design industries. Second, ownership can move but authorship cannot. A company may own every economic right in a novel, but it can never become the author, and the term of protection will still be measured from the death of the human being who wrote it.

Table 7 — Authorship Distinguished from Ownership

Aspect	Authorship	Ownership
Question answered	Who created the expression?	In whom do the economic rights vest?
Determined by	Section 2(d) — a question of fact	Section 17 — a question of law, subject to contract
Can it be transferred	No — authorship is a permanent historical fact	Yes — by assignment under S. 18 and 19, or by testamentary disposition
Rights carried	Moral rights of paternity and integrity under S. 57	The economic rights listed in S. 14, in whole or in part
Relevance to term	The clock is set by the author's death, whoever owns the work	Ownership changes do not extend, shorten or restart the term
Who may sue	The author, for infringement of moral rights	The owner and an exclusive licensee, for infringement of economic rights

Ownership is moved either by assignment or by licence. An assignment under Sections 18 and 19 must be in writing and signed, must identify the work, the rights assigned, the territory and the duration, and must state the royalty payable; if no duration is stated it is taken to be five years, and if no territory is stated it is taken to be India. An assignment lapses if the assignee does not exercise the rights within one year. A licence under Section 30 leaves ownership where it is and merely permits specified use. The 2012 amendment added a protection that cannot be contracted away: an author of a literary or musical work used in a film or sound recording is entitled to an equal share of royalties for all exploitation outside the cinema hall, and any agreement to the contrary is void.

Case Study — Indian Performing Right Society Ltd. v. Eastern India Motion Picture Association, Supreme Court of India (1977). The society, acting for composers and lyricists, published a tariff for the public performance of film music. Film producers objected that once a song had been made for a film and paid for, no separate performing right could survive in favour of the composer. The Supreme Court held that the producer, having commissioned the composition for valuable consideration in the course of making the film, becomes the first owner of the copyright in the film and may exercise the performing right in the song as part of the film — unless there is a contract to the contrary. At the same time it confirmed that the musical work and the lyrics remain distinct works whose authors retain copyright in them outside the film. The decision is the most important Indian illustration of Section 17 in operation, and its practical consequence — that composers and lyricists earned nothing when their songs were played on radio, television or in restaurants — is precisely what the 2012 amendment was enacted to reverse.

Case Study — V. T. Thomas v. Malayala Manorama, Kerala High Court (1989). The cartoonist known as Toms had created the characters Boban and Molly years before he joined the newspaper Malayala Manorama, and he continued to draw them during his employment there. After his services were terminated he resumed publishing the strip elsewhere, and the newspaper sought an injunction on the footing that it owned the characters. The Court drew the line exactly where Section 17(c) draws it. An employer's ownership extends only to works actually made in the course of employment; it does not reach backwards to works created before the employment began, and it does not follow the author forward after the employment ends. The characters had been conceived before he joined, so the copyright in them remained with him throughout, and he was free to continue drawing them. The case is the clearest Indian statement that employment transfers ownership of specific works, not of an author's creative identity.

5. The Duration of Copyright

Copyright is deliberately finite. The Indian term is sixty years, which is ten years more than the minimum of fifty required by the Berne Convention, and the point from which those sixty years run depends on the category of the work. For works with a human author it runs from the author's death; for works whose authorship is corporate, anonymous or entrepreneurial it runs from publication. Two mechanical rules should be remembered. Sections 22 to 29 all compute the term from the beginning of the calendar year next following the relevant event, so every Indian copyright expires on a 31 December. And where a work has joint authors, the clock starts only on the death of the last of them to die.

Table 8 — Term of Copyright and Related Rights by Category

Category of Work	Term of Protection	Provision
Literary, dramatic, musical or artistic work published in the author's lifetime	The author's lifetime plus 60 years, counted from the year following the year of death	S. 22
Work of joint authorship	60 years from the year following the death of the last surviving author	S. 22 with S. 2(z)
Anonymous or pseudonymous work	60 years from the year following first publication; if the author's identity is disclosed, 60 years from the author's death instead	S. 23
Posthumous work — published after the author's death	60 years from the year following the year of first publication	S. 24
Photograph	The author's lifetime plus 60 years; the separate 50-year rule in S. 25 was omitted by the 2012 amendment, so photographs are now treated like any other artistic work	S. 22
Cinematograph film	60 years from the year following the year of publication	S. 26
Sound recording	60 years from the year following the year of publication	S. 27
Government work	60 years from the year following the year of first publication	S. 28
Work of a public undertaking	60 years from the year following the year of first publication	S. 28A
Work of an international organisation	60 years from the year following the year of first publication	S. 29
Broadcast reproduction right	25 years from the beginning of the year following the year of the broadcast	S. 37
Performer's right	50 years from the beginning of the year following the year of the performance	S. 38

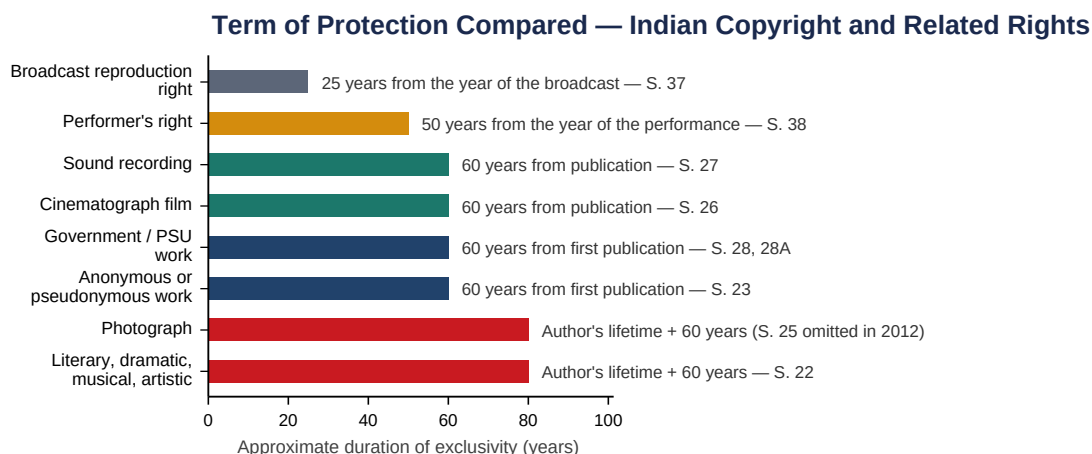


Figure 4 — Duration of exclusivity compared across copyright and related rights.

Table 9 — The Indian Term in International Perspective

Jurisdiction	Works with a Human Author	Films and Sound Recordings
India	Life of the author plus 60 years	60 years from publication
Berne Convention minimum	Life of the author plus 50 years	50 years from making or publication
United States	Life plus 70 years; 95 years from publication for works made for hire	95 years from publication
European Union and United Kingdom	Life plus 70 years	70 years for sound recordings; 70 years from the death of the principal director and other named authors for films
Japan and Canada	Life plus 70 years	70 years from publication

When the term ends the work enters the public domain permanently and irrevocably. Anyone may then copy, perform, translate, adapt, film or sell it without permission or payment. Three qualifications matter in practice. A new edition, translation, arrangement or restoration attracts a fresh copyright, but only in the new expressive material that the editor or translator has added, not in the underlying public domain work. A brand name or logo associated with the work may continue indefinitely as a trade mark. And moral rights under Section 57 are, on the Indian view, exercisable by the author's representatives even in respect of works whose economic term has run out.

Case Study — The Tagore Copyright and Visva-Bharati (1941 to 2001). Rabindranath Tagore died in August 1941, and by his bequest the copyright in his vast body of songs, poems, plays and prose was administered by Visva-Bharati, the university he founded. Under the term then in force — the author's life plus fifty years — the copyright would have expired at the end of 1991, and the university's approvals for the publication, translation and musical arrangement of Rabindrasangeet would have ceased to be required. In 1991 Parliament extended the general term from fifty to sixty years, and because the amendment applied to subsisting copyrights the exclusivity was carried forward to 31 December 2001. On 1 January 2002 the entire corpus entered the public domain, and the effect was immediate and visible: new editions, new translations and new recorded interpretations appeared without anybody's permission. The episode is a compact illustration of four rules at once — that the term for a literary or musical work is measured from the author's death and not from publication, that it is computed from the beginning of the following calendar year and therefore always expires on 31 December, that a legislature may extend a term and thereby revive

exclusivity in works about to fall free, and that expiry, once it happens, cannot be undone.

6. Registration, Infringement, Defences and Remedies

Registration is optional, but it is worth having. Section 48 makes the Register of Copyrights prima facie evidence of the particulars entered in it, which in litigation converts a contested question of ownership into a rebuttable presumption in the plaintiff's favour, and criminal complaints and customs actions proceed far more smoothly with a registration certificate in hand.

Table 10 — The Copyright Registration Procedure

Stage	What Happens
Application	Form XIV is filed online with the prescribed fee, a statement of particulars and, where required, a no-objection certificate from the author or other rights holders
Diary number	A diary number is issued; a mandatory waiting period of 30 days follows, during which any person may object to the registration
Scrutiny	If no objection is received the application is examined for discrepancies; objections or discrepancies lead to a letter and, if necessary, a hearing before the Registrar
Registration	The particulars are entered in the Register of Copyrights and an extract is issued to the applicant
Evidentiary use	The extract is prima facie evidence under Section 48 in civil, criminal and customs proceedings

Infringement is defined by Section 51. Primary infringement is doing, without licence, any act that only the owner may do. Secondary infringement covers permitting a place to be used for a public performance for profit, and dealing commercially in infringing copies. The test applied is not identity but substantial reproduction: whether the defendant has appropriated the material and essential features of the plaintiff's expression, judged by the impression of an ordinary observer rather than by counting the differences. Against that stands the fair dealing catalogue in Section 52, which includes private and personal use, research, criticism and review, reporting of current events, use in judicial proceedings, performance in the course of instruction, back-up copies and lawful interoperability of computer programmes, and the conversion of any work into an accessible format for the benefit of persons with disabilities. Sections 65A and 65B, inserted in 2012, separately criminalise the circumvention of technological protection measures and the removal of rights management information.

Table 11 — Remedies Available for Infringement of Copyright

Type of Remedy	Instrument	Practical Effect
Civil	Interim and permanent injunction under S. 55	Stops the infringing publication, performance or upload
Civil	Damages, or an account of profits	Compensates the loss suffered or strips the infringer's gain
Civil	John Doe or Anton Piller order	Search, seizure and relief against unnamed defendants before trial, widely used before film releases
Civil	Delivery up and destruction of infringing copies and plates	Removes pirated stock and the means of producing it

Type of Remedy	Instrument	Practical Effect
Criminal	Prosecution under S. 63 — a cognisable offence	Imprisonment of six months to three years and a fine between fifty thousand and two lakh rupees
Administrative	Notice to the Commissioner of Customs under S. 53	Detention of infringing consignments at the border
Digital	Dynamic injunction; takedown notice under the intermediary rules	Blocking of rogue websites and their subsequently created mirrors
Institutional	Copyright societies registered under S. 33; statutory licence under S. 31D	Collective licensing, tariff setting and royalty distribution

The Copyright Protection Lifecycle

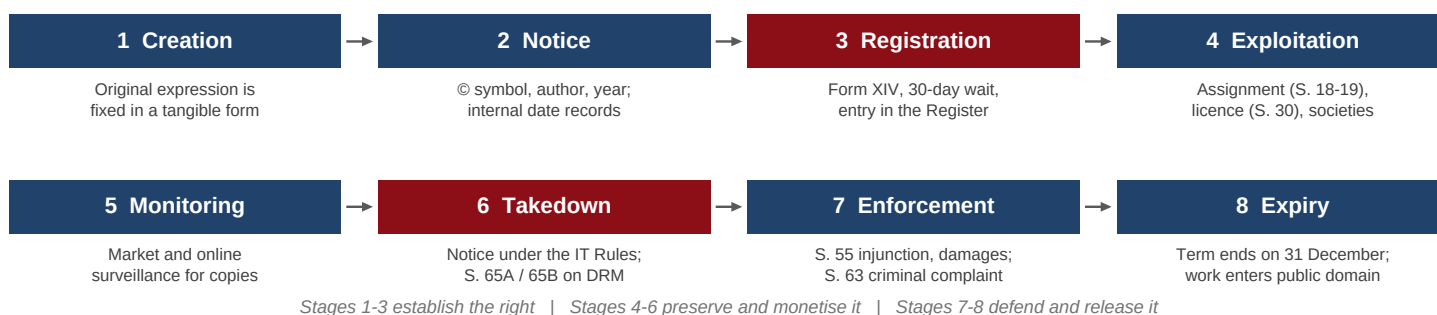


Figure 5 — The eight stages through which a copyright is created, exploited, defended and released.

Case Study — UTV Software Communication Ltd. v. 1337x.to, Delhi High Court (2019). A group of film studios sued more than thirty file-sharing websites whose operators were anonymous, whose servers were abroad and whose domains were replaced with near-identical mirrors within hours of any blocking order. The Court held that online infringement is not a lesser species of infringement and that the remedy has to be shaped to the medium. It set out indicative tests for identifying a “flagrantly infringing online location” — the primary purpose of the site, the concealment of its ownership, the absence of any takedown mechanism, the volume of traffic and its own encouragement of infringement — and then granted what has become known as a dynamic injunction: an order that the plaintiff may extend to newly appearing mirror and redirect domains by applying to the Joint Registrar, without filing a fresh suit each time. The judgment also distinguished the site operator from the ordinary viewer, declining to treat individual users as targets. It is the leading Indian authority on digital copyright enforcement and on the obligations of internet service providers.

7. Administration of Copyright in India

Copyright administration was historically separate from industrial property, but the two were brought together in 2016 when the Copyright Office was transferred from the Ministry of Human Resource Development to the Department for Promotion of Industry and Internal Trade, and placed under the Controller General of Patents, Designs and Trade Marks. Adjudication has also been consolidated: the Copyright Board was merged into the Intellectual Property Appellate Board in 2017, and when that body was abolished by the Tribunals Reforms Act, 2021 its functions passed to the Commercial Courts and the High Courts.

Table 12 — The Institutions and What Each One Does

Institution	Location and Status	Function
Copyright Office	New Delhi; under DPIIT since 2016	Receives applications, maintains the Register of Copyrights, issues extracts
Registrar and Deputy Registrars of Copyrights	Within the Copyright Office	Scrutiny, hearings on objections and discrepancies, entries and rectification
CGPDTM	Headquarters at Mumbai	Administrative control over the Copyright Office alongside patents, designs, trade marks and geographical indications
Commercial Courts and High Courts	Across the country	Hear copyright suits, statutory licence disputes and appeals after the abolition of the IPAB in 2021
Copyright societies under S. 33	IPRS, PPL, ISRA and SCRIPT among others	Collective licensing of public performance and communication rights, tariff publication and royalty distribution
Cell for IPR Promotion and Management	New Delhi, under DPIIT	Awareness, training, and coordination of the National IPR Policy of 2016

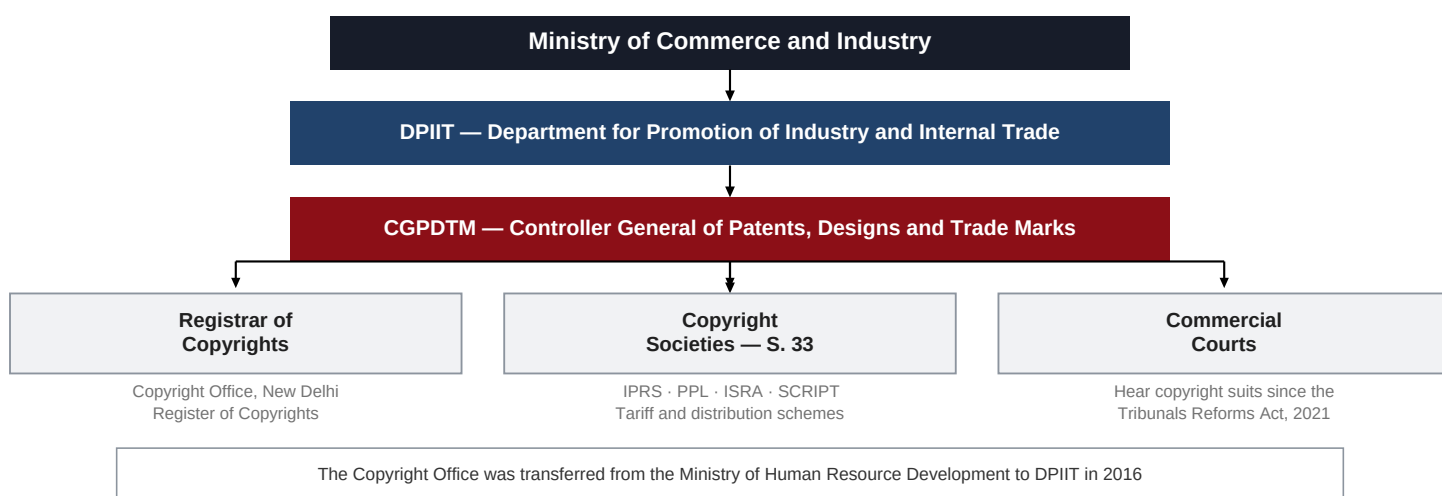


Figure 6 — Administrative structure governing copyright in India.

8. Viva Questions and Answers

1. Q: Why does copyright need no registration while a patent does?

A: Because copyright protects expression, which is self-evident from the work itself, whereas a patent protects a technical monopoly that has to be examined for novelty and inventive step before it can be justified. Article 5(2) of the Berne Convention forbids member states from making copyright depend on any formality, so registration in India is voluntary and, under Section 48, only evidentiary.

2. Q: What is the difference between copyright and a related right?

A: Copyright belongs to the author of an original work and is conditional on originality. A related or neighbouring

right belongs to a performer, a producer of a sound recording or a broadcasting organisation, requires no originality, and rewards performance, fixation or dissemination rather than authorship. India recognises them in Sections 37, 38, 38A and 38B.

3. **Q: Does a performer have rights in a performance of a public domain work?**

A: Yes. The performer's right under Section 38 attaches to the performance itself. The underlying work need not be original, need not previously have been fixed in any medium, and may be in the public domain or improvised on the spot.

4. **Q: Distinguish authorship from ownership with an example.**

A: Authorship is a fact fixed by Section 2(d); ownership is a legal allocation made by Section 17. A staff journalist is the author of the article she writes, but the proprietor of the newspaper is the first owner so far as publication in that newspaper is concerned. She remains the author permanently, retains her moral rights, and the term of protection is still measured from her death.

5. **Q: Who owns a wedding photograph, and who owns a photograph taken by a salaried photographer?**

A: A wedding photograph is commissioned for valuable consideration, so under Section 17(b) the client who commissioned it is the first owner, though the photographer remains the author. A photograph taken by a salaried photographer in the course of employment vests in the employer under Section 17(c). Both rules yield to an agreement to the contrary.

6. **Q: What is the difference between a contract of service and a contract for service for copyright purposes?**

A: A contract of service is employment, and Section 17(c) vests the copyright in works made in its course in the employer. A contract for service is an independent engagement, and the copyright stays with the consultant or freelancer unless there is a written assignment complying with Sections 18 and 19. This distinction is the commonest cause of ownership disputes in software and design projects.

7. **Q: How exactly is the sixty-year term calculated?**

A: From the beginning of the calendar year next following the year of the relevant event — the author's death for literary, dramatic, musical and artistic works, and first publication for films, sound recordings, anonymous works, Government works and works of public undertakings. Every Indian copyright therefore expires on 31 December. For joint authors the clock starts on the death of the last survivor.

8. **Q: Has the term for photographs changed?**

A: Yes. Section 25 formerly gave photographs a flat fifty years from publication. The 2012 amendment omitted that section, so a photograph is now treated like any other artistic work and enjoys the author's lifetime plus sixty years.

9. **Q: What are moral rights, and can they be assigned away?**

A: Section 57 gives the author the right of paternity, to claim authorship, and the right of integrity, to restrain distortion, mutilation or modification prejudicial to honour or reputation. They exist independently of the economic rights, survive an unconditional assignment, and are exercisable by the author's legal representatives. *Amar Nath Sehgal v. Union of India* (2005) applied them even against destruction of the work by its owner.

10. **Q: What test does Indian law apply to originality, and which case settled it?**

A: A minimal degree of creativity — skill and judgment that is more than trivial and more than purely mechanical.

Eastern Book Company v. D. B. Modak (2008) rejected both the English sweat of the brow standard and any requirement of novelty, holding editorial headnotes protectable while copy-edited judgment text was not.

9. Learning Outcomes

- Defined copyright as a right over original expression rather than over ideas, explained why it arises automatically on creation, and placed it within the wider framework of intellectual property rights and the Berne, Rome, TRIPS, WCT, WPPT and Marrakesh obligations that India has accepted.
- Set out the bundle of economic rights conferred by Section 14 category by category, the moral rights of paternity and integrity under Section 57, and the reasons why the rights of performers, producers of sound recordings and broadcasting organisations are treated as related or neighbouring rights.
- Identified and classified the works protected by copyright — literary, dramatic, musical and artistic works, cinematograph films, sound recordings, software, databases, maps and technical drawings, labels and advertisements, and multimedia products — and marked the boundary against ideas, facts, methods and titles.
- Differentiated authorship under Section 2(d) from first ownership under Section 17, worked through the employment, commissioning, speech, Government and public undertaking situations, and explained why ownership is transferable while authorship is not.
- Interpreted the duration of protection under Sections 22 to 29, including the calendar-year computation rule, the position of joint, anonymous and posthumous works, the revised treatment of photographs, and the shorter terms attaching to performances and broadcasts.
- Applied these concepts through decided cases — Amar Nath Sehgal, Neha Bhasin, Eastern Book Company v. Modak, R. G. Anand, IPRS v. EIMPA, V. T. Thomas, the Tagore public domain episode and UTV Software v. 1337x — to see how the statutory language behaves under litigation.
- Evaluated the ethical use of protected material by working through the Section 52 fair dealing exceptions, the registration and enforcement machinery, and the administrative structure of the Copyright Office under DPIIT.